

ORDINANCE NO. _____

AN ORDINANCE TO ADD SIGN DEFINITIONS TO ARTICLE 2-1(B) AND TO ESTABLISH ARTICLE 4-12 OF ORDINANCE NO. 359, AS AMENDED, PROVIDING UNIFORM SIGN REGULATIONS FOR THE CITY OF RECTOR, ARKANSAS

WHEREAS, the City of Rector is authorized under Arkansas Code Annotated § 14-56-401 et seq. to adopt and amend zoning regulations governing the location and use of structures, including signs, for the purpose of protecting the public health, safety, and welfare; and

WHEREAS, the City of Rector has adopted the City of Rector Comprehensive Land Use Plan (2025–2030) which supports the regulation of commercial development and signage in a manner that promotes local businesses, protects public investment in infrastructure, and avoids unnecessary regulatory complexity; and

WHEREAS, the City has experienced instances of sign placement near or within public rights-of-way and along highway corridors that raised safety, enforcement, and consistency concerns under the existing zoning regulations; and

WHEREAS, the City’s existing zoning regulations do not clearly distinguish between permitted on-premises signage and prohibited off-premises advertising, resulting in enforcement challenges and the need for discretionary review; and

WHEREAS, the Planning Commission conducted a duly noticed public hearing on May 12, 2026, to receive public input regarding proposed sign regulations; and

WHEREAS, *members of the public were present at said hearing and were afforded the opportunity to comment, and public input was received and considered by the Planning Commission; and*

WHEREAS, the Planning Commission, after review and consideration of the Comprehensive Land Use Plan, existing conditions within the City, and public comment, has recommended adoption of simplified and uniform sign regulations to the City Council; and

WHEREAS, the City Council finds that clear, uniform sign regulations reduce the need for discretionary review and improve consistent enforcement;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF RECTOR, ARKANSAS:

Section 1. The City Council of the City of Rector shall add the following definitions to Article 2-1 (B)

Sign. Any device, structure, fixture, or display, whether permanent or temporary, that uses words, letters, symbols, figures, graphics, or illumination to convey information, identification, or advertising, and that is visible from a public street or public right-of-way.

On-Premises Sign. A sign that advertises or identifies a business, service, activity, or use conducted on the same lot on which the sign is located.

Off-Premises Sign. A sign that advertises or identifies a business, service, activity, or use not conducted on the same lot on which the sign is located. Billboards are considered off-premises signs for the purposes of these regulations.

Freestanding Sign. A sign that is supported by one or more structures or supports placed in or upon the ground and that is not attached to a building.

Section 2. The City Council of the City of Rector Arkansas shall establish Article 4-12

A new Article 4-12 of the Zoning Regulations of the City of Rector is hereby adopted to read as follows:

Article 4-12: Signs

A. **Purpose** The purpose of this Article is to regulate the placement, size, and location of signs in a manner that:

1. Protects public safety, including visibility along streets and highways;
2. Preserves the character of the community;
3. Allows reasonable and customary signage for residences, businesses, and civic uses; and
4. Prevents the placement of signs that create traffic hazards or resemble off-premises advertising.

B. **Applicability** This Article applies to all signs located within the City of Rector. A sign shall be considered a structure for zoning purposes unless specifically exempted by this Article. No sign shall be erected, altered, relocated, or replaced except in compliance with this Article.

C. General Regulations

1. No sign of any type shall be located within the public right-of-way, except signs installed by a governmental entity.
2. No sign shall obstruct driver visibility, interfere with traffic control devices, or create a traffic hazard.
3. Signs shall not contain flashing, animated, moving, or strobe lighting. Lighting shall not resemble emergency or traffic control signals.
4. All signs shall be maintained in a safe and structurally sound condition.

D. **Signs Permitted by Right** The following signs are permitted without a building permit, provided they comply with Section C:

1. One **Address Sign** per lot, not exceeding four (4) square feet in area.
2. One **Residential Nameplate Sign** per dwelling, not exceeding six (6) square feet in area.
3. **Window Signs** not exceeding 25 percent of the area of the individual window.

4. One **Real Estate Sign** per lot advertising sale or lease of the property on which it is located. Maximum area: 6 square feet in residential zones; 32 square feet in commercial zones. Such signs shall be removed within 7 days of sale or lease.
5. **Yard Sale and Garage Sale Signs** displayed only during the sale period and removed immediately thereafter.
6. **Temporary A-Frame or Sidewalk Signs** permitted for commercial uses during business hours only, provided the sign is located entirely on private property and does not obstruct pedestrian access.
7. **Temporary Noncommercial Signs**, including political, civic, or issue-oriented messages, displayed not more than one-hundred and twenty (120) days prior to an election or event and removed within seven (7) days thereafter.

E. **Signs Requiring a Permit** A building permit shall be required for the following:

1. **Freestanding On-Premises Signs** A sign that advertises a business, service, activity, or use conducted on the same lot where the sign is located. This includes supported by one or more structures or supports placed in or upon the same lot and that is not attached to a building.
 - a. Maximum height: fifteen (15) feet, except that signs located on a state or federal highway frontage may be permitted up to twenty (20) feet.
 - b. Maximum sign face area: forty-eight (48) square feet per face, except that signs located on state or federal highway frontage may be permitted up to sixty-four (64) square feet per face.
 - c. Minimum setback: ten (10) feet from the edge of pavement or behind the sidewalk, if present, whichever is greater.
 - d. One freestanding sign per lot or street frontage
2. **Wall-Mounted Signs** A sign attached to the wall of a building.
 - a. Shall not extend above the roofline.
 - b. Shall not project more than 15 inches from the wall.
3. **Projecting Signs** A sign projecting from a building wall.
 - a. Minimum clearance above sidewalk: 8 feet
 - b. Maximum projection: 4 feet
4. **Temporary Event or Banner Signs**
 - a. Maximum display period: **30 consecutive days**
 - b. Must be removed at the end of the event or permit period

Applications for signs requiring a permit shall be submitted to the Enforcement Officer and shall include sign dimensions, method of support, and proposed location on the lot sufficient to determine compliance with this Article.

F. Prohibited Signs The following signs are prohibited within the City:

1. **Off-Premises Commercial Advertising Signs.** Any permanent sign advertising a business, service, or commercial activity not located on the same lot on which the sign is placed. Billboards are considered off-premises commercial advertising signs for the purposes of these regulations.
2. **Signs Located in the Public Right-of-Way**

G. Nonconforming Signs

1. Any sign lawfully existing at the time of adoption of this Article that does not conform to these regulations may continue to exist.
2. A nonconforming sign shall not be enlarged, relocated, replaced, or structurally altered in a manner that increases nonconformity except for routine maintenance and changes to sign copy that do not increase the degree of nonconformity.
3. If a nonconforming sign is removed or destroyed, any replacement sign shall comply with this Article.

H. Enforcement

1. The Enforcement Officer shall administer and enforce this Article.
2. A sign erected without required approval shall constitute a zoning violation.
3. Violations shall be subject to the penalties provided in Article 7 of the Zoning Regulations.

Section 3. Severability

That the provisions of this Ordinance are separable and if a section, phrase or provision shall be declared invalid, such declaration shall not affect the validity of the remainder of the Ordinance.

Section 4. Repealer

That all ordinances and resolutions and parts thereof in conflict herewith are hereby repealed to the extent of such conflict.

EMERGENCY CLAUSE

It is hereby declared that an emergency exists to preserve the public peace, health, and safety of the citizens of Rector, Arkansas, by ensuring consistent and enforceable sign regulations and protecting public safety along public streets and highways. Therefore, this ordinance shall be in full force and effect upon its passage and publication.

PASSED AND APPROVED this _____ day of _____, 2026.

By: _____
Mayor Shawn Brandon

Attested:

City Clerk